



FW: Revenue's Proposed Use of Voter Registration Data from the PA Department of State

From Roman Strakovsky <Roman.Strakovsky@phila.gov>

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Some unfortunate news.

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Subject: Revenue's Proposed Use of Voter Registration Data from the PA Department of State

Good morning Revenue and Law Department teams –

Thank you for your updates and discussion regarding Revenue's proposed uses of voter registration data.

Our unit has reviewed Revenue's proposed use with other units in the Law Department that work on elections and election-related litigation. The joint conclusion is that we do not wish to alter the Law Department's prior advising regarding uses of voter registration data and we advise against Revenue using voter registration data for Revenue-related purposes.

Prior Law Department advice has been that voter files and voter registration information can only be used for a limited set of statutory purposes: a) elections, b) political activities, and c) law enforcement. 25 Pa. C.S. 1207(b) & 1404(c)(2). Therefore, the Law Department has not approved uses of voter registration data for social service outreach and non-criminal justice purposes other than purposes related to elections and political activities.

We acknowledge that voter registration data can be purchased from the PA Department of State. Even so, when purchasing the data, the individual must affirm that the records will not be used except for purposes related to elections, political activities, and law enforcement. See [PA Full Voter Export](#) affirmation. In other words, the PA Department of State expects purchasers to abide by the statutory restrictions on that data, even if that data is readily available for purchase.

As a result, even purchased voter registration data should only be used for statutorily defined purposes. Our understanding is that Revenue plans to match and use voter registration data to help determine owner occupancy for initiatives like property tax relief assistance and outreach; homestead auditing; and performance tracking. Outreach, auditing, and tax administration do not fall within the scope of the statutory purposes for voter registration data, either from the City Commissioners or from the PA Department of State. Therefore, we advise against Revenue using voter registration data for these purposes.

In issuing this advice, we recognize that Revenue has put time and effort into these proposed purposes, and that abiding by these statutory restrictions can be frustrating. Even so, we face pressures relating to voter data and elections that go beyond Revenue's proposed uses here, and hence we are continuing to direct City departments to follow the Law Department's prior advice.

I'm cc'ing both Andrew Richman, Chief of the Compliance and Legislation Unit, and Michael Pfautz from the Affirmative and Special Litigation Unit on this email for awareness and context.

Thank you, and we appreciate your partnership with the Law Department on this and other matters.

Best, Elise

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